

Tentative Rulings for July 15, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302933	MORGAN vs SAN GORGONIO MEMORIAL HOSPITAL	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SETS SEVEN AND EIGHT, AND REQUEST FOR PRODUCTION, SET SIX

Tentative Ruling:

GRANT the motion.

Defendant San Gorgonio Memorial Hospital is Ordered to serve verified, code-complaint further responses to Special Interrogatories, Set Seven, Nos. 88 and 90, and Special Interrogatories, Set Eight, Nos. 96, 98-121, 124-127, 129-171, 173-174, without objections, within 20 days.

Defendant San Gorgonio Memorial Hospital to pay monetary sanctions to Plaintiff's counsel in the reduced reasonable amount of \$1,790 (7 hours at \$250/hour plus \$40 filing fee), within 30 days.

Defendant has indicated that it has served further responses to the Request for Production of Documents (RFP), rendering the motion moot as to the RFPs.

These special interrogatories seek the factual basis for Defendant's contention that it did not neglect Plaintiff during his admission to Defendant's hospital. Defendant relies on CCP § 2030.230 in response, which permits a party to refer to documents in answer to the interrogatory, but Defendant's response is inadequate. The description of the documents that are responsive must contain sufficient detail to allow the propounding party to locate and identify those documents. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 784.) Referring to "only one set of documents, plaintiff's medical records from SAN GORGONIO," organized by "record type (nursing notes, orders, physician notes, etc.)," is insufficient. Defendant offers only a generalized reference to voluminous records, leaving Plaintiff to guess which facts Defendant believes support its position. Rather than identifying any particular document or Bates ranges, Defendant refers generally to entire categories of records. Such a response does not enable Plaintiffs to determine what facts Defendant actually relies upon to support its contentions. For Special Interrogatories Nos. 99, 124, and 174, Defendant again fails to identify facts supporting its contentions and Defendant either provides a nonresponsive answer or merely restates its ultimate conclusion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF KELLY MICHELSEN TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ SET ONE
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF MICHELSEN ENTERPRISE, INC. TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ SET ONE
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORY NO. 105 AND NO. 106
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF JENNIFER JORDAN TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF JORDAN SMTF INVESTMENTS, LLC TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ SET ONE
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF TERESA MAHAFFEY TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ SET ONE
CVRI2405915	MICHELSEN ENTERPRISE, INC. vs AGUILAR	MOTION TO COMPEL RESPONSES OF THE MAHAFFEY FAMILY CORP. TO THE SPECIAL INTERROGATORIES OF MARC RODRIGUEZ SET ONE

Tentative Ruling:

GRANT the Motions to Compel Further Responses to Special Interrogatories 105 and 106 of Defendant Marc Rodriguez.

Further responses, without objections, are ordered within 20 days.

These interrogatories ask Plaintiffs to state in detail each item of compensatory damages they seek from Defendant, including all items of claimed damages, the amounts, how the amounts were calculated, and the documentation to support these amounts. Opposing Plaintiffs identify categories of damages for which an estimate has been provided. For other categories, no estimate has been provided. For the estimated damages, these seem to be made up of multiple different types of costs (such as

equipment costs), but no breakdown of how the estimate has been calculated has been provided. While categories of documents have been identified, the bates number or document number of the documents have not. Therefore, the responses are incomplete. This information can be provided at this stage without an expert, and expert compilation is not required. Plaintiffs' objections that these interrogatories are premature and seek information protected by the attorney work product doctrine are not well founded and have no merit.

No Sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502144	THE BANK OF NEW YORK MELLON, vs DAVIS	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

Dismissals of March 25, 2026, are set aside.

Matter is set for an Order to Show Cause Re: Why this matter should not be dismissed for failure to file a default judgment packet, to be heard on September 23, 2026, at 8:30am, D-4.